

Sakshi And Another vs State Of U.P. And 2 Others on 5 March, 2020

Author: Kaushal Jayendra Thaker

Bench: Kaushal Jayendra Thaker

HIGH COURT OF JUDICATURE AT ALLAHABAD

?Court No. - 33

Case :- WRIT - C No. - 7575 of 2020

Petitioner :- Sakshi And Another

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Dinesh Kumar Singh, Gaytri Rajput

Counsel for Respondent :- C.S.C.

Hon'ble Dr. Kaushal Jayendra Thaker, J.

1. Heard learned counsel for the petitioners and learned Standing Counsel for the State.
2. Petitioners are Hindu by religion. Section 5 of Hindu Marriage Act, 1955 stipulates one of the conditions for majority of a girl and by which such marriage is voidable or it is to be treated voidable. Hence, submission of the counsel for the State is rejected.
3. It is stated that both petitioners being major have solemnized their marriage on 20.2.2020 out of their own free will. They have applied for registration of their marriage before Sub Registrar, Patiyali, District Kasganj.
4. It is alleged that the private respondents are interfering with marital life and liberty of the petitioners.

5. The petitioners have moved the police authority much before which shows that they have real apprehension to their lives.
6. Learned Standing Counsel for the state states that some rider may be applied.
7. The petitioners belong to the same district. The police authority concerned shall give protection to the petitioners in view of the decisions of Apex Court in *Gian Devi v. The Superintendent, Nari Niketan, Delhi and others*, (1976) 3 SCC 234; *Lata Singh v. State of U.P. and another*, (2006) 5 SCC 475; and *Bhagwan Dass v. State (NCT of Delhi)*, (2011) 6 SCC 396 and as per the Government Order dated 31.8.2019.
8. As the matter has been proceeded ex parte against the private respondent, if he has any grievance and if it is found that there is any misstatement, the private respondent may file an application before the concerned police authority who may consider his grievance and do the needful.
9. It goes without saying that this Court has not entered into whether the marriage is legal or not.
10. With these observations, this petition is partly allowed.

Order Date :- 5.3.2020 Ram Murti